AMENDMENT AND AGREEMENT

THIS AMENDMENT AND AGREEMENT (this "**Agreement**") is entered into as of April __, 2019 (the "**Amendment Effective Date**"), by and among CrossBoundary Energy Ghana, a company limited by shares, registered in Ghana bearing Registration Number CS137952018 and having its registered address at No. 31 Ringway Estates, Asafoanye O. Broni, Accra, Accra Metropolitan, P.O. Box MN 595, Ghana ("**CBE Ghana**") and Kasapreko Company Limited, a company limited by shares, registered in Ghana bearing Registration Number C-31,575 and having its registered address at DTD #64 Off Spintex Road, Baatsonaa, Accra, Ghana ("**Customer**"), each a "**Party**" and together, the "**Parties**."

RECITALS

A. NVI Energy (Mauritius) Ltd (Ghana) ("**SolarAfrica**") and Customer entered into a Solar Services Agreement (as amended, the "**SSA**") dated on or about December 2, 2016 in connection with the design, construction and operation of a photovoltaic electricity generation system ("**Facility**") for the benefit of the Customer.

B. SolarAfrica and Customer amended the SSA by mutual agreement on May 31, 2017.

C. By virtue of the Completion Certificate dated October 18, 2019, signed by SolarAfrica and the Parties, and the Assignment, Assumption and Transfer Agreement effective the same date between affiliates of SolarAfrica and CBE Ghana, SolarAfrica's rights, title, and interest in the SSA and the Facility have been wholly transferred to CBE Ghana.

D. Customer confirmed and agreed in the Completion Certificate that the Facility was successfully commissioned on October 17, 2018 (the "**Phase I Commercial Operation Date**"); and

E. The Parties intend to expand the Facility by adding 904.8 kWp in installed capacity ("**Phase II**"), with the option to further modify the size of Phase II to reach a total installed capacity of up to 1,600 kWp (the "**Expanded Facility**"). The Parties also intend to increase the Solar Discount provided to Customer.

NOW, THEREFORE, in consideration of the premises set forth above and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties hereby agree as follows:

1. **Definitions and Interpretation.**

   1.1. "**Phase II Commencement Notice**" means a notice indicating the intention of CBE Ghana to start procurement and installation of the Developer Works for Phase II, and specifying the updated expected capacity for Phase II and for the Expanded Facility.

   1.2. "**Phase II Commercial Operation Date**" means the date on which CBE Ghana shall have provided notice to Customer pursuant to clause 11 of the SSA that all conditions of commercial operation for Phase II and the Expanded Facility have occurred.

   1.3. "**Phase II Enabling Works**" has the meaning set forth in Annexure E2.

   1.4. Unless otherwise defined in this Agreement, capitalized terms used in this Agreement have the respective meanings ascribed to them in the SSA. The rules of interpretation set forth in the SSA shall apply to this Agreement.

2. **SSA Amendments.** Unless expressly specified otherwise, the following amendments to the SSA shall be effective from the Amendment Effective Date:

   2.1. Revised Fixed Solar Discount. In anticipation of the expansion of the Facility, the value of the *Fixed Solar Discount* set forth in Part I of the SSA is hereby amended from 18.5% and restated as 19.5%. The *Current Grid Tariff (Year-1)* and *Discounted Solar Tariff (Year-1)* set forth in Part I of the SSA along with their corresponding values shall be deemed deleted in their entirety.

   2.2. Revised Floor Solar Tariff (Year-1). In anticipation of the expansion of the Facility, the value of the *Floor Solar Tariff (year-1)* set forth in Part I of the SSA is hereby amended from 0.1199 USD/kWh and restated as 0.0874 USD/kWh.

   2.3. Expanded Sublease Area. Annexure B (Site & Sublease Area) to the SSA shall be deemed deleted and replaced in its entirety with Annexure B2 (Site & Sublease Area – Expanded Facility) attached hereto, and all references to the

"Sublease Area" in the SSA shall be deemed to be references to the areas marked "Phase I" and "Phase II" on Annexure B2.

2.4. Consent to Expansion of Facility. Customer hereby consents to (i) the Design Drawings for Phase II set forth in Annexure C2 (Design Drawings - Phase II) attached hereto, (ii) the installation of Phase II in the Sublease Area as amended, and (iii) the incorporation of Phase II, when complete, into the Facility for all purposes of the SSA.

2.5. Conditions Prior to Installation of Phase II. The provisions of Sections 7.4, 7.5, 7.6 and 13 of the SSA shall apply to Phase II, provided that (ii) Developer's termination rights pursuant to Section 7.6 shall only apply to the provisions in this Section 2 (and any such termination would only result in the amendments to the SSA set forth in this Section 2 becoming void, but would not affect the validity of the SSA or the other provisions of this Agreement), and (ii) any reference to "Enabling Works" in such provisions shall be deemed to be references to the "Phase II Enabling Works."

2.6. Expected Energy Output for Expanded Facility. Effective as of the Phase II Commercial Operation Date, Annexure D to the SSA shall be deemed deleted and replaced in its entirety with Annexure D2 (Expected Energy Output & Storage – Expanded Facility) attached hereto.

2.7. Early Purchase Schedule for Expanded Facility. Annexure I (Early Purchase Schedule) to the SSA shall be deemed deleted and replaced in its entirety with Annexure I2 (Early Purchase Schedule – Expanded Facility) attached hereto, provided that, (i) until the issuance of the Phase II Commencement Notice, the Early Purchase Charge shall be calculated based on the capacity of the Facility installed as of the Effective Date, (ii) following the issuance of the Phase II Commencement Notice, the Early Purchase Charge shall be calculated based on the expected capacity of the Expanded Facility as set forth in the Phase II Commencement Notice, and (ii) following the Phase II Commercial Operation Date, the Early Purchase Charge shall be calculated based on the actual installed capacity of the Expanded Facility as of such date.

2.8. Initial Term. Effective as of the Phase II Commercial Operation Date, the *Initial Term* set forth in Part I of the SSA shall be deemed to start from first day of the month following the Phase II Commercial Operation Date.

2.9. Annexures: The following annexures are affixed to this Agreement and shall be deemed approved by the Parties upon signature of this Agreement.

- ANNEXURE B2: SITE & SUBLEASE AREA LAYOUT - EXPANDED FACILITY
- ANNEXURE C2: DESIGN DRAWINGS - PHASE II
- ANNEXURE D2: EXPECTED ENERGY OUTPUT & ENERGY STORAGE - EXPANDED FACILITY
- ANNEXURE F2: CUSTOMER ENABLING WORKS - PHASE II
- ANNEXURE I2: EARLY PURCHASE SCHEDULE - EXPANDED FACILITY

3. **No Defaults.** No Party is in default under the SSA and, to the best of each Party's knowledge, no facts or circumstances exist which, with the passage of time or the giving of notice or both, would constitute a default or breach by any Party under the SSA. As of the Amendment Effective Date, except for any amounts accrued for Energy Output delivered or available to be delivered to Customer since the Phase I Commercial Operation Date and not yet paid, neither Party owes any amount to the other under the SSA, and each Party waives any claims it may have related to Energy Output or costs incurred by Customer prior to the Phase I Commercial Operation Date.

4. **CBE Notice Address.** All notices to Customer under this Agreement shall be sent to the address set forth in the SSA. All notices to CBE Ghana under the SSA or this Agreement shall be sent to General Counsel, CrossBoundary Energy, energynotices@crossboundary.com.

5. **No Modification to SSA.** Other than the amendment, assignments, consents and acknowledgments described in this Agreement, nothing in this Agreement is intended to modify, alter or rescind any of the terms or provisions of the SSA.

6. **Miscellaneous.** This Agreement shall be governed by the laws of the jurisdiction set forth in the SSA, without regard to principles of conflicts of law. The dispute resolution provisions set forth in the SSA shall apply to this Agreement. This Agreement shall inure to the benefit of and be binding upon each of the Parties and each of their respective successors and assigns. This Agreement may only be amended by a writing signed by all of the Parties. This Agreement may be executed in counterparts, each of which is deemed an original, but all of which constitutes one and the same agreement. Delivery of an executed counterpart of this Agreement electronically or by facsimile shall be effective as delivery of an original executed counterpart of this Agreement. This Agreement constitutes the entire agreement of the Parties relating to the subject matter hereof and supersedes all prior contracts, agreements or understandings with respect to the subject matter hereof, whether oral or written.

IN WITNESS WHEREOF, the Parties have each executed this Agreement as of the Amendment Effective Date.

KASAPREKO COMPANY LIMITED:

By:_____

Name: Richard Adjei

Title: CEO

Date: 26th April 2019

CROSSBOUNDARY ENERGY GHANA LIMITED:

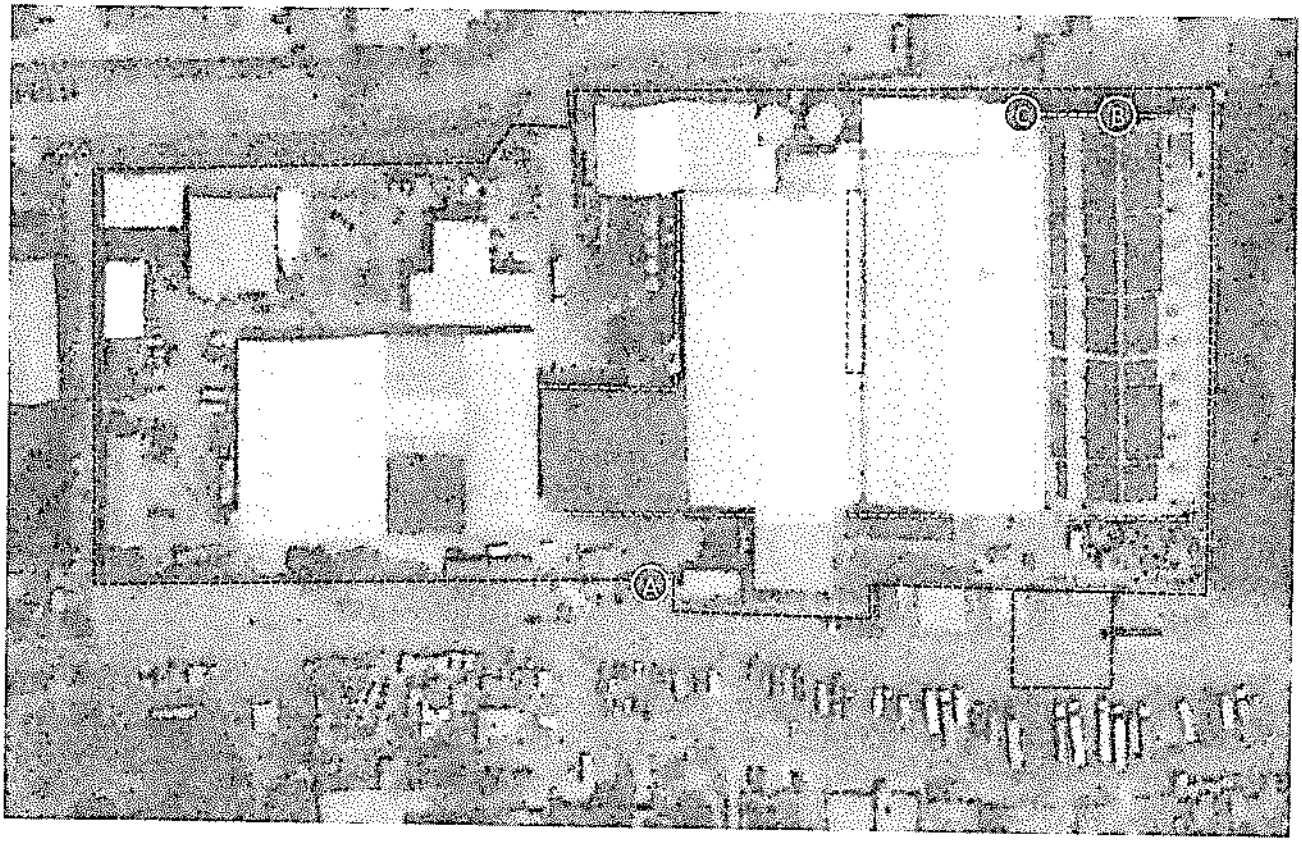
By:_____

Name: Matthew Tilleard

Title: Director

Date: 26th April 2019

ANNEXURE B2: SITE & SUBLEASE AREA LAYOUT -EXPANDED FACILITY



Kasapreko Site Boundary

Phase I Sublease Area

Phase II Sublease Area

A Site Access Point

B Interconnection Point and Metering Point – See Annexure C for detail

C Point of Customer water supply

Inverter and solar DB location Phase II

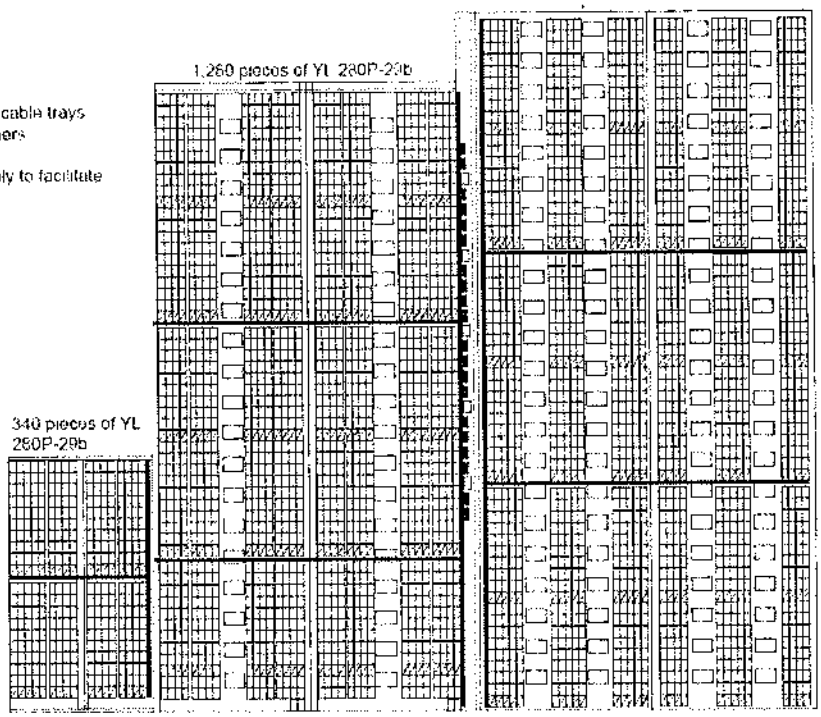
Laydown Area

ANNEXURE C2: DESIGN DRAWINGS - PHASE II

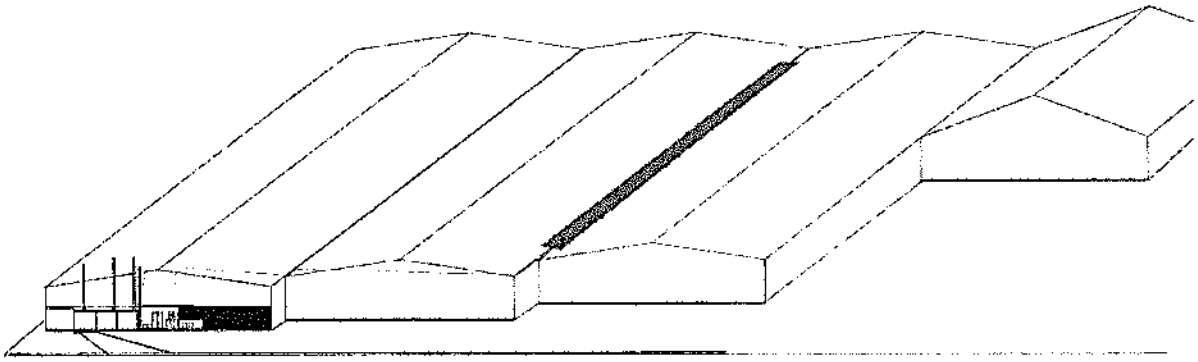
NOTES

The module plan shows cable trays inverters and AC combiners

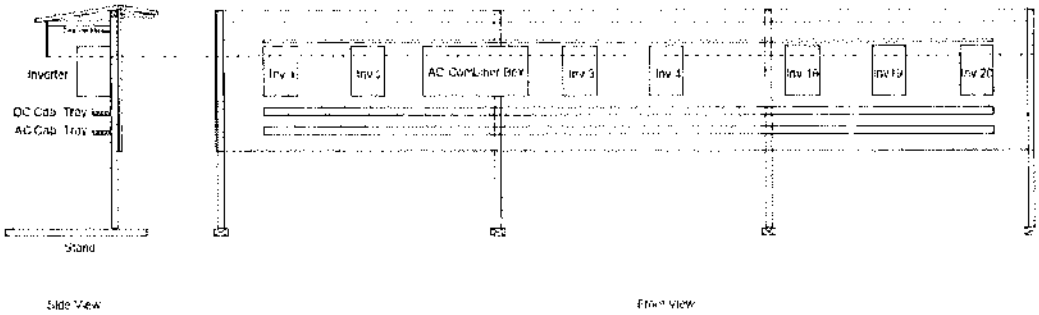
Crossed modules are only to facilitate counting



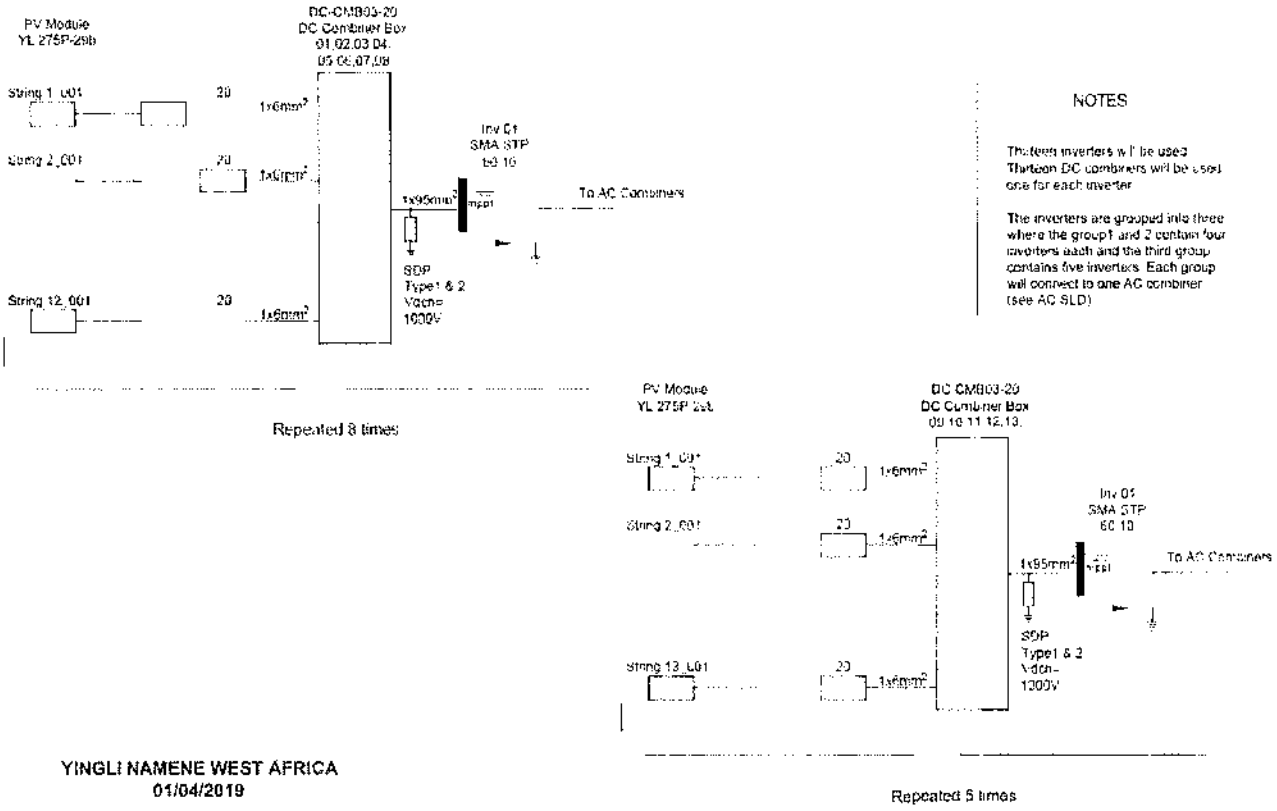
Kasapreko 2nd Phase PV showing proposed inverter location



PROPOSED INVERTER MOUNT STRATEGY
Kasapreko Second Phase PV



DC SLD KASAPREKO 2ND PHASE 900 kWp PV SYSTEM



NOTES

Thirteen inverters will be used
Thirteen DC combiners will be used one for each inverter

The inverters are grouped into three where the group 1 and 2 contain four inverters each and the third group contains five inverters. Each group will connect to one AC combiner (see AC SLD)

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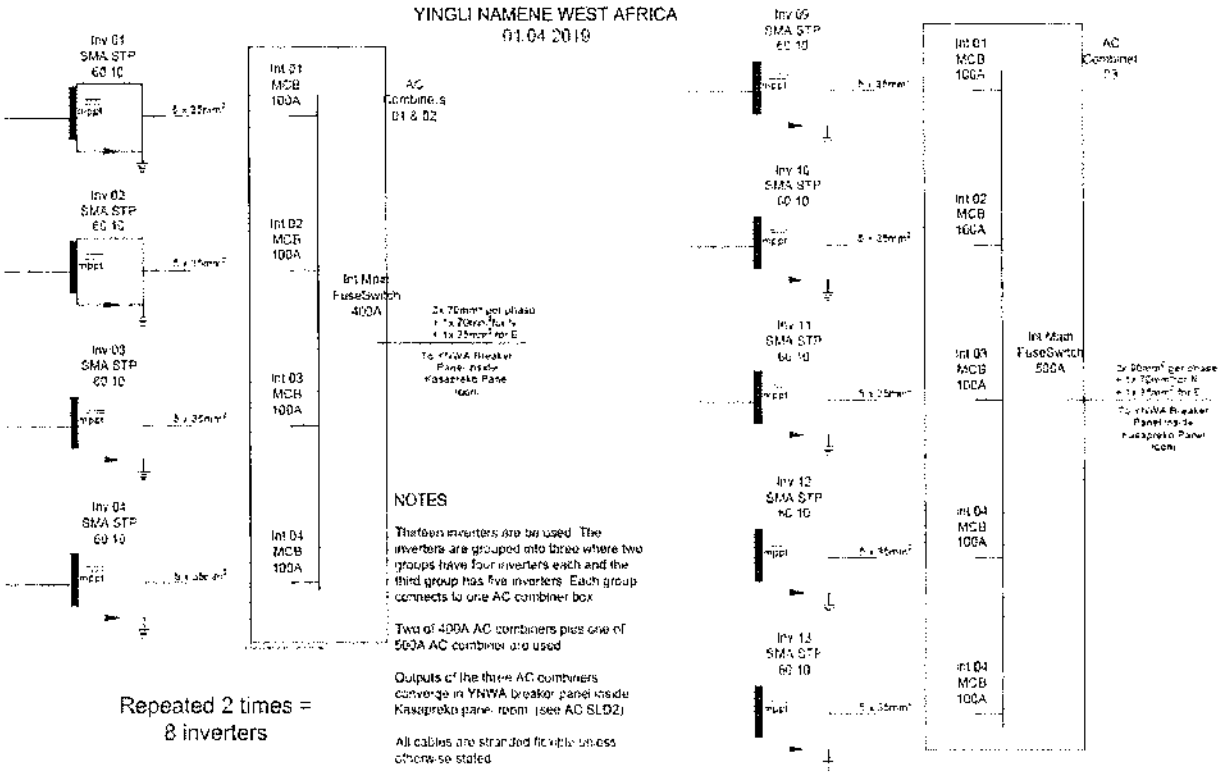
01/04/2019

AC SLD1 KASAPREKO 2ND PHASE 900 kWp PV SYSTEM

YINGLI NAMENE WEST AFRICA
01.04.2019



Repeated 2 times =
8 inverters

NOTES

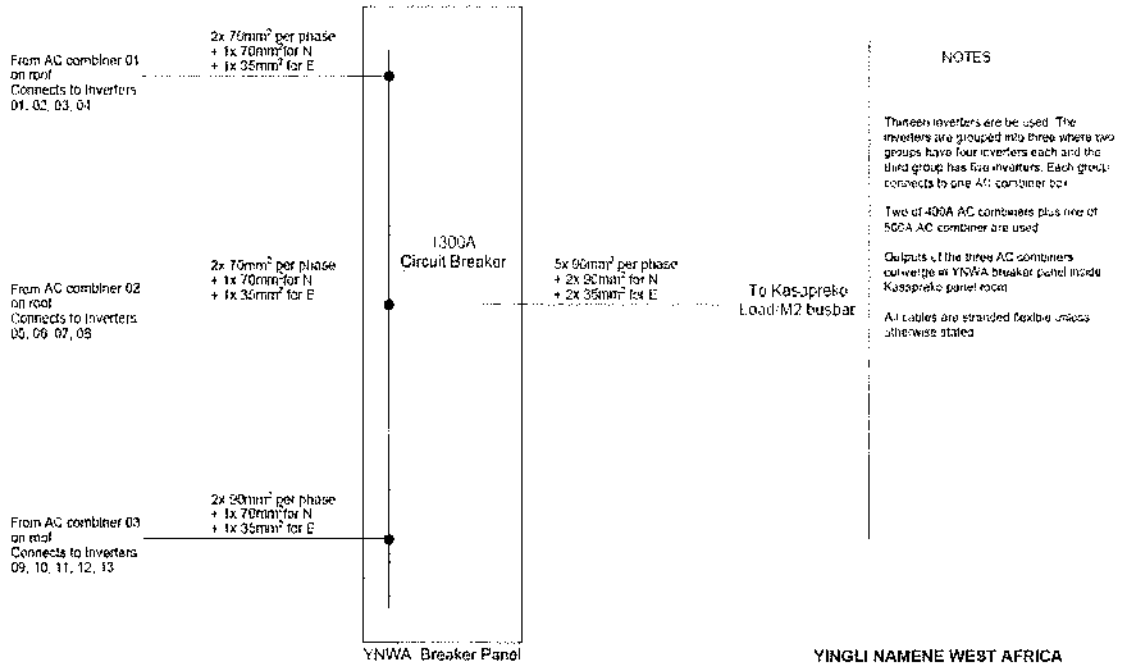
Thirteen inverters are be used. The inverters are grouped into three where two groups have four inverters each and the third group has five inverters. Each group connects to one AC combiner box

Two of 400A AC combiners plus one of 500A AC combiner are used

Outputs of the three AC combiners converge in YNWA breaker panel inside Kasapreko panel room (see AC SLD2)

All cables are stranded flexible unless otherwise stated

AC SLD2 KASAPREKO 2ND PHASE 900 kWp PV INTERGRATION



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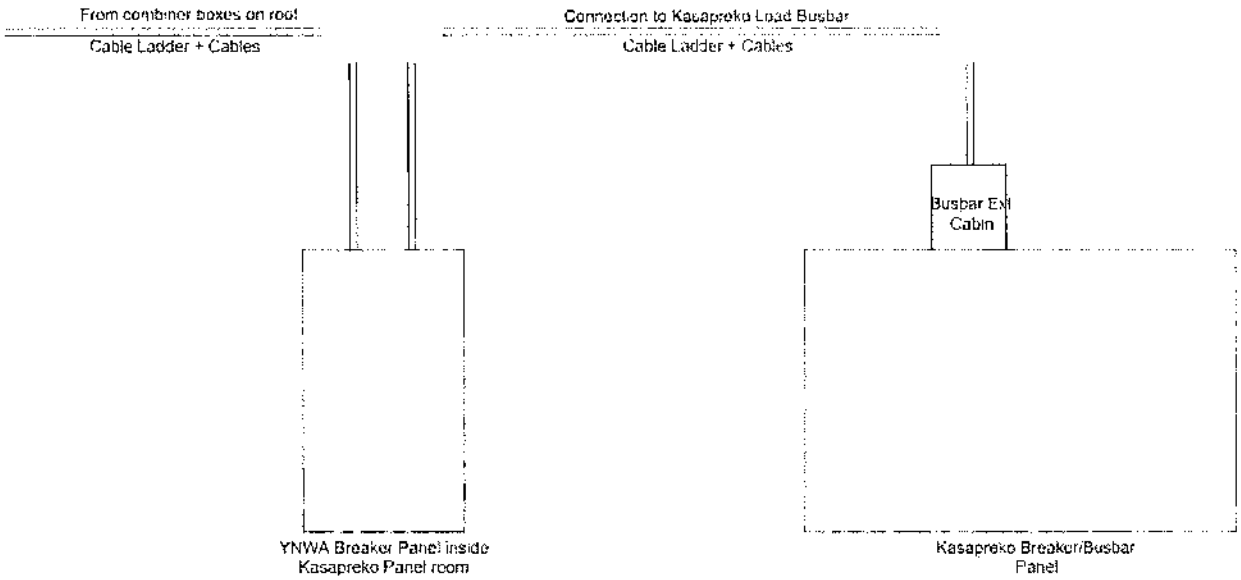
KASAPREKO 2ND PHASE 900 kWp PV SYSTEM PANEL CONNECTION PLAN



YINGLI NAMENE WEST AFRICA
01/04/2019

ANNEXURE D2: EXPECTED ENERGY OUTPUT & ENERGY STORAGE – EXPANDED FACILTY

The below Early Purchase Charges will be applied to the final installed solar capacity for the Expanded Facility in kWp.

Year	kWh/kWp
1	1,441.1
2	1,435.3
3	1,429.5
4	1,423.8
5	1,418.1
6	1,412.5
7	1,406.8
8	1,401.2
9	1,395.6
10	1,390.0
11	1,384.4
12	1,378.9
13	1,373.4
14	1,367.9
15	1,362.4
16	1,357.0

ANNEXURE F2: CUSTOMER ENABLING WORKS (PHASE II)

#	DESCRIPTION	DEFINITION
1	Sign-off on structural assessment report	Customer to take responsibility of the roof integrity and give approval for the solar system (including inverters) to be installed based on the findings of the report.
2	Creation/Provision of access routes	Customer to grant access to a truck with 40' container load. The Customer will allow the Developer to erect scaffolding: a scaffold tower each site of building at north and south side. For the lifting of materials, an area available at the north and the south of the building shall be made available by the Customer.
3	Storage room for equipment	The Customer will make space available for 2 containers 40', for storage of materials at the Site. The area made available shall be: South-west of bottling factory. There must be room for loading and unloading as well.
4	Security on site	The Customer will supply the same level of security in regard to the materials of the Developer as the Customer currently employs on Site, to prevent theft during site demolition on the roof and theft of stored material.
5	Discharging planning conditions that must be satisfied prior to construction commencing	The Customer will ensure all legal requirements are met for construction to start.
6	Signage provisions	The Customer to provide the required signage provisions.
7	Provision of space for cabling	Adequate space will be provided by Customer for running cables (AC or Data cables) between Inverter, Main busbar and Distribution room of Customer, ECG connection point and Diesel Gensets. Customer will allow space for running cables between module field and inverter location.
8	Internet connection to inverters/ Inverter Container	Customer to supply two (2) permanently connected Ethernet terminals with internet connection to connect monitoring devices.
9	Provision of sanitary facilities to Developer	Customer to allow Developer to access washroom facilities of the Customer, during the installation period.
10	Working hours schedule	Customer to provide a working hours schedule to Developer to abide by
11	Building Permit	It is the duty of the Customer (owner of the roof) to apply for, pay and obtain the building permit for installation and operation of a solar plant on the Kasapreko roof.
12	Installation of CT's for FSC control	Developer is authorised to connect the FSC to the Controls of the Diesel Gensets (DSE panels) via Data cable and the planned interface. The Customer shall make historical Data from the DSE panel available to the Developer so as to best understand the programming of the DSE controls. The Customer is to provide the programming of the start and stop mechanism of each of the DSE panels to the Developer.
13	Provision of site utility services	Customer to supply electricity for charging and running electrical devices and water as required.
14	Interconnection down time	Connection of the AC solar power cable to the Customer busbar needs approximately 4 hours downtime of the Private Distribution Network. The Customer will allow for this downtime. The Developer is required to notify Customer four (4) weeks before connection is required and subsequent Commercial Operation.
15	Testing phase	During commissioning it will be required to test the FSC capability which may result in switching of loads and energy supply source. The Customer to provide acceptable time for such tests. The Developer is required to notify Customer four (4) weeks before commissioning tests and Commercial Operation are performed.
16	Interconnection Point	The Customer to allow the Developer to connect the solar facility directly to the load/M2 busbar and allow for sufficient space for interconnection works. .
17	Main PV DB	The Customer shall allow the Developer to install the main PV Distribution board within the same LV switchroom as the connection point.
18	Fire Safety Permit	Customer will ensure that the Facility included in the renewal of the Customer's Fire Safety Permit.
19	Environmental Management Plan	Customer to ensure that the Facility is included in the renewal of the Customer's Environmental Management Plan.
20	Reactive Power Compensation	The Facility will supply power at unity power factor and will not (under normal operation) provide any reactive power compensation. Any reactive power compensation required will need to be accounted for by the Customer.
21	Switchboard Operations	Customer will be responsible for all operations and maintenance of all electrical infrastructure on the Customer's side of the Interconnection Point including Generator Equipment, transformers, switchgear, AVR's, UPS and power factor correction equipment.

22	Building Repairs	Customer will be responsible for all repair and maintenance of the existing building and roofing material.
23	Water	Customer to provide water required for module cleaning as indicated in Annexure B.

ANNEXURE I2: EARLY PURCHASE SCHEDULE – EXPANDED FACILITY

The below Early Purchase Charges will be applied to the final installed solar capacity for the Expanded Facility in Wp.

Year	Early Purchase Charge (US$/Wp)
1	1.948
2	1.948
3	1.818
4	1.688
5	1.558
6	1.429
7	1.299
8	1.169
9	1.039
10	0.909
11	0.779
12	0.652
13	0.522
14	0.392
15	0.262
16	0.132